

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
JOHN BREHON,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
KINGS County as the
place of trial

CITY OF NEW YORK, P.O. NATASHA MATTHEWS,
P.O. RICO IANTORNO, and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by Plaintiff
and meant to designate additional offending officers,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
April 16, 2019


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
P.O. Natasha Matthews, Shield 16966 & P.O. Rico Iantorno, Shield No. 11296 of the 77th Precinct
127 Utica Avenue, Brooklyn NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOHN BREHON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. NATASHA MATTHEWS,
P.O. RICO IANTORNO and OFFICER[S] JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF JOHN BREHON

1. At the time of the commencement of this action, plaintiff JOHN BREHON was
and still is a resident of the County of Kings, City and State of New York.
2. That the causes of action alleged herein arose in the County of Kings, City and
State of New York.

3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about January 20, 2018, P.O. NATASHA MATTHEWS was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about January 20, 2018, at approximately 8:15 P.M. P.O. NATASHA MATTHEWS was working and acting within the scope of her employment as a Police Officer, and under the color of law.
7. That on and about January 20, 2018, P.O. RICO IANTORNO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about January 20, 2018, at approximately 8:15 P.M. P.O. RICO IANTORNO was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about January 20, 2018, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff but known to Defendants as Officers involved in the battery and assault upon Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about January 20, 2018, OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about January 20, 2018 at approximately approximately 8:15 P.M., behind 1162 St. Johns Place, Brooklyn, New York, the plaintiff JOHN BREHON was improperly battered and assaulted without privilege, proper authority or justification, having no reason in law or in fact to batter and assault plaintiff JOHN BREHON.

12. That the defendants P.O. NATASHA MATTHEWS, P.O. RICO IANTORNO and / or OFFICER[S] JOHN AND JAMES DOE, did, during an arrest of plaintiff, utilize unjustified, unnecessary excessive force.

13. That the defendants, their agents, servants and / or employees unlawful battery and assault upon Plaintiff thereby caused fright, shock, emotional distress and physical consequences.

14. That at the above time and place Plaintiff laid down in a grassy area at the above mentioned location.

15. The aforesaid officers immediately commenced a brutal repeated beating and assault upon Plaintiff, despite him laying in the grass, offering no resistance nor any justification for the assault visited upon him.

16. Plaintiff was then transported to the 77th Precinct in the hand cuffs, whereupon he was again violently assaulted and mistreated.

17. That Plaintiff was never charged with Resisting Arrest, Disorderly Conduct or any charge which might justify the use of any force whatsoever, and in any event, all criminal charges were dismissed on August 1, 2018.

18. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure utilizing excessive force and assaulting and battering persons without justification and repeatedly providing false information and testimony without reprimand to the offending officers.

19. That said illegal and unlawful assaults and /or utilization of excessive force which constituted an unconstitutional policy are a matter of public record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the complete lack of discipline or penalty visited upon the offending officers.

20. Said policy, practice and procedure is well evidenced by statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest

show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

21. On October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf. That report determined that the New York City Police Department routinely fails to discipline officers who have been proven to utilize excessive force, and fails to adequately track instances of abuse of power, and fails to properly train officers in the de-escalation of situations reasonably calling for the same, and despite those findings, and perfunctory attempts, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

22. While numerous high profile cases demonstrate this practice, such as the de minimis discipline of the police officers who caused the deaths of Eric Gardner and Noel Polanco or the assault upon James Blake, thousands of other individuals have been

victims of this practice, including the Plaintiff herein, who garner no publicity but who are necessarily known by the Defendants by virtue of the claims and actions brought and filed against such officers who engage in such nefarious and brutal actions yet receive little or no repercussions or discipline as detailed above.

23. That no negligence or actions on the part of the plaintiff JOHN BREHON

contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff JOHN BREHON of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

25. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

26. That as a result of the foregoing, the plaintiff JOHN BREHON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JOHN BREHON

27. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 26 as though more fully set forth herein.

28. That on April 17, 2018, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof, electronically, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

29. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

30. That on or about August 22, 2018 the Plaintiff did appear and give testimony at a General Municipal Law §50h hearing noticed and conducted by the CITY OF NEW YORK.

31. This action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

32. That on or about January 20, 2018 at approximately approximately 8:15 P.M., behind 1162 St. Johns Place, Brooklyn, New York, the plaintiff JOHN BREHON was improperly battered and assaulted without privilege, proper authority or justification, having no reason in law or in fact to batter and assault plaintiff JOHN BREHON.

33. That the defendants P.O. NATASHA MATTHEWS, P.O. RICO IANTORNO and / or OFFICER[S] JOHN AND JAMES DOE, did, during an arrest of plaintiff, utilize unjustified, unnecessary excessive force.

34. That the defendants, their agents, servants and / or employees unlawful battery and assault upon Plaintiff thereby caused fright, shock, emotional distress and physical consequences.

35. As a result of the aforesaid assault, plaintiff JOHN BREHON received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries,

both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

36. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff JOHN BREHON of Due Process under Law.

37. That the acts of the Defendants, CITY OF NEW YORK, its agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. NATASHA MATTHEWS, P.O. RICO IANTORNO and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to assault and battery upon Plaintiff and the defendants were otherwise careless, reckless and negligent including those Officers who failed to intervene to prevent the occurrence.

38. That the plaintiff JOHN BREHON, as a result of said battery and assault, suffered severe and serious physical and emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O.

NATASHA MATTHEWS, P.O. RICO IANTORNO and OFFICER[S] JOHN AND/OR JAMES DOE.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the plaintiff JOHN BREHON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JOHN BREHON

41. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

43. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful use of force.

44. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff JOHN BREHON was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second and Third Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 16, 2019



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

JOHN BREHON

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Natasha Matthews, Shield 16966
P.O. Rico Iantorno, Shield No. 11296
both of the 77th Precinct
127 Utica Avenue, Brooklyn NY 11213

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

JOHN BREHON

I have read the annexed

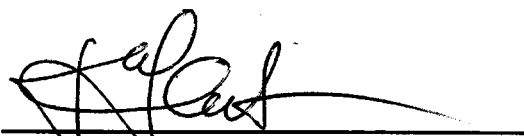
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

April 16, 2019


JONATHAN L. GLEIT, ESQ.